TOWNSHIP OF LINCOLN
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Lincoln Township Zoning Board of Appeals

Tom Godau – Chair ***Marshall Swanson*** – Vice-Chair
Cynthia Engelhardt – Secretary ***Tamara McCaslin*** - Member
Jerry Bridges – Township Board Liaison ***Kim Smith*** - Alternate

Roger Carey – Zoning Administrator ***Werner Mantei*** – Building Inspector
Deb Sherrod – Recording Secretary

Lincoln Township Zoning Board of Appeals
Regular Meeting
Wednesday, August 10, 2016

The meeting was called to order by Chair Godau at 7:00 pm.

Roll Call:
Present – Board Members: Bridges, Secretary Engelhardt, Chair Godau, McCaslin, Vice-Chair Swanson,
Staff: Zoning Administrator Carey, Recording Secretary Sherrod
Absent – Building Inspector Mantei
Public - 6

Approval of Minutes:
Regular Meeting minutes of April 13, 2016 – It was moved by Bridges and seconded by Swanson to accept the minutes as written. Motion carried.

Conflict of Interest Statement (Declare and Cite): No conflict of interest was stated.

General Comments by Chair: Chair Godau advised that Lincoln Township is a Zoned Township. Of sixteen townships in Clare, ten are zoned; six are not. It is important for people who move into the township to understand that Lincoln is

zoned and how the boards are selected or elected and the structure under which those boards operate.

He explained that the ZBA is not a political structure, but one of appointment. He went on to explain about what a variance involves and how the zoning administrator deals with the steps of zoning permits, building permits, and then the process in which a permit is denied. He also explained the roles of the zoning administrator and the building inspector. The decision of the zoning board of appeals shall be final.

A party aggrieved by the decision may appeal to the circuit court of Clare County within whichever of the following deadlines comes first:

a. Thirty days after the zoning board of appeals issues its decision in writing signed by the chairperson, if there is a chairperson, or signed by the members of the zoning board of appeals, if there is no chairperson.
b. Twenty-one days after the zoning board of appeals approves the minutes of its decision.

Purpose: Chair Godau read the following information: This is a variance request for Russell Veenstra on his property at 301 West Park St., Lincoln Township, Lake, MI 48632, for the construction of a partial wall on an open porch which violates the existing Township Zoning Ordinance pertaining to adding structure to existing non-conforming structure. Russell Veenstra's is a non-conforming structure due to its failure to meet the minimum required setbacks from both roads.

Public notice: Notice of this Public Hearing was posted in the *Clare County Cleaver* (Legal Section) on July 21, 2016. Notifications were sent to all property owners within 300 feet of the property for the purpose of public comment being made to the ZBA. The public hearing information was also posted at the township hall and on the township's website in the calendar of events.

Brief Explanation of the Rules: Chair Godau explained that variance requests are submitted in person by the persons making the request. The Lincoln Township Board of Appeals must follow the variance standards created by Michigan Statute. These provide that the ZBA must determine that a Practical Difficulty exists in order to grant a variance. These statutes ARE LAW and provide that: 1. There is a Practical Difficulty; 2. The circumstances are Unique to the Property; 3. There is Substantial Justice; 4. The issue was Not Self-Created; 5. Minimum Variance Necessary

Zoning Administrator Statement:
See Attachment #1

Petitioner's Statement: Mr. Veenstra explained his problem with water coming into his house from the road since he purchased the property 27 years ago. He called the road commission who told him to talk to the township. He said they just kept passing the buck back and forth. During the spring his house gets flooded. He has tried several methods fixing the problem. For several years he put up tarps to try to solve the problem but there were complaints from neighbors about the looks. In 2014 he put up boards on the side as well as a rain gutter on the north end of the house. These two solutions seemed to help with the water problem. In 2015 he decided to add the stone to continue solving the problem. He kept calling the road commission and the township but neither would help. He has dealt with mold and other issues with water. He has even tried to use flowers and plants to help to divert the water away from the low area. He states that he did not create the problem. He says he is not the type to keep bugging people about problems, but goes ahead and tries to fix things himself. He did not think he was breaking any rules, but had to do something to keep from having to replace rugs. It has taken a while to get the mold and mildew out of his house. Since he put the wall up, he has not had any more water come into his house even though some has come up on to his porch.

ZBA Members Comments & Questions:
Bridges: Did you ever make contact with the Drain Commissioner's office?
Veenstra: I called everyone I could think of.
Bridges: This is a situation that the Drain Commission should be able to help with. You should contact the office at the county and they might have solutions to prevent this from happening.
Veenstra: I probably did contact them as I called everyone I could think of; I don't remember if I called them or not.
Bridges: I have been a builder all my life and there are practical solutions.
Veenstra: I will call the Drain Commissioner's office first thing in the morning.
Bridges: I would call them for sure as we had a fairly light winter last year and who knows what kind of winter we will have in the future.
Veenstra: The way the house sits, it is kind of in a hole and on the north side I have a kind of trench that helps, but on the east side, nothing seems to help. The water goes about 5 or 6 feet into the living room.
Bridges: This might be a situation where a berm would help.
Veenstra: There is kind of a berm there already.

Bridges: I didn't see anything that would be a big enough berm to help. I suggest you contact Carl Parks at the Drain Commissioner's office.

Godau: Jerry has just given you advice based on his experience.

Veenstra: We tried using "Dry Core" if you know what that is.
Bridges: All that does is elevate your floor and doesn't prevent the water and mold coming in.
Veenstra: When that didn't work, I had to put up the tarps which the neighbors didn't like. And I understand that.
Bridges: You probably have a cement slab and they put all the wooden structure right down on that slab. This problem will keep happening.
Veenstra: Yes, I want to get this fixed so that I can sell the place.
Bridges: Building codes tried to fix this a few years ago by setting an 8-inch height for the structure's base to keep water from coming in. Also your plates are probably not treated either.
Veenstra: I did replace those with treated wood a while ago.

Swanson: You said that you don't have anyone to help, but you have neighbors that could help, like Joyce Branam.
Veenstra: I did talk to her years ago when she was on the board and she did try to help. And other neighbors came over and helped me as well.

Engelhardt: I think what people are saying is that you definitely have a drainage problem, but this is not a permanent solution. People are trying to say that there are other, permanent solutions that you can use. You have tried to do things on your own which are not working.
Veenstra: I have walkways and gravel with pipe around the north side of the house which help. I have more plans to continue that type of solution.

McCaslin: Where and when did you put in the drain thing? (One person said it is called a French Drain)
Veenstra: I put it in a while ago.
McCaslin: Have you tried doing anything closer to the road?
Veenstra: I was up closer to the road, but it didn't work. It isn't wide enough, but I want to make it wider.
McCaslin: In the winter do the snow plows push it in?
Veenstra: Yes, on both sides.

Bridges: What is the future of the porch as you have a smokestack at one end?

Veenstra: I have been trying to get that out of there; it goes into my house heater.
Bridges: The reason I asked is that it makes me think that you have plans to enclose the porch and have a heater out there.
Bridges: You need to have a mechanical permit to do the kind of work with stovepipes that you are talking about. Did you get one?
Veenstra: I didn't know you needed one for that.
Bridges: Building Inspector Mantei can help you get one or contact the department you need to for that.
Veenstra: I am hoping to get the wood stove right out and use the furnace, but it has problems.

Public Comment:
One comment about the fact that Veenstra has been working on it, but does need to get in touch with the drain commissioner
Another comment was made that the wall is better looking than the tarps.
A third comment about the improvements that Veenstra has made and how it makes the property look better.
Chair Godau read another comment in favor of the current situation at the Veenstra house.

Public Comment Closed by Chair

Discussion and Further Questions by ZBA Members:
Engelhardt: I really want Bridges input because this solution is truly aesthetically pleasing. But it doesn't solve the drainage problem.
Bridges: It is in violation of the ordinance.
McCaslin: I agree with Jerry that this will not solve the problem and that the drain commission will have a solution.
Godau: I know that in some situations the board can make the motion before the finding of fact instead of the other way around. Can we try that this time?
Bridges: I have a question for ZA Carey about the dimensions. Looking at the diagram, are those measurements correct?
Veenstra: I measured from the center of the road.
Godau: The road doesn't necessarily fall within the center of the right of way which causes a lot of misinterpretation.
Bridges: Also, because you are on the corner, you have two front yards.
Carey: To answer your question, Jerry, both roads have 60 foot right of way so the house is non-conforming by the setbacks.

Public Comment:
Carey clarified the legal road right of way.
Veenstra: I don't understand where the center of the road is.
Bridges: It is not where the center line is; it can be different as the road goes back and forth. In Lincoln, these are county roads and it is different.
Veenstra: Like I said, since I put up the wall in 2015, I didn't have all the water come in for that year and 2016. That is why I put up the stone over the wood. I am hoping that I can keep it with the French drain and other methods I have tried. It stops a lot of the water coming in even in the hard rains.
McCaslin: I just want you to know that we know that it does look much better.

Chair Godau then explained the process from here on in the motion, finding of fact, and the voting.

Final Decision: Godau made a motion to accept granting the variance as requested but with the understanding that no further enclosement occurs with any building materials including screening, plastic, or glass. Any further enclosement will be a direct violation of this variance granted. Swanson seconded the motion.

Godau explained that this motion requires a *yea* or *nay* in support of the motion.

Roll Call Vote:
Bridges: **N;** Engelhardt: **N;** Godau: **Y**; McCaslin: **N**; Swanson: **Y**

Motion Failed: 2 Yeas; 3 Nays. Variance is **Denied**.

Finding of Fact: The board finalized their finding of facts and turned them in to Chair Godau to compile.

Adjournment: Engelhardt moved to adjourn; McCaslin seconded. Motion passed with all in favor. Meeting adjourned at 8:20 pm.

Respectfully Submitted,

Cindy Engelhardt, Secretary

Attachment #1

I'm going to start my report by stating that, I'm not going to defend my positions **to the complainant**, however I will answer any question directed to me by the Zoning Board of Appeals.

Our Zoning Ordinance is the law. Mr. Veenstra added/altered his structure by adding a half wall. This violates our Zoning Ordinance. Two places in our Ordinance it says "No structure shall be erected, nor shall an existing building be altered or enlarged unless it conforms with the minimum area and setback requirements".

The ZBA should grant a variance from the township's zoning laws only after the property in question meets stringent tests described in the zoning ordinance. The zoning regulations are ultimately intended to protect the general health, safety and welfare of the township. Practical Difficulty: Lincoln Township has a set of criteria an applicant must meet to be allowed a Variance. An applicant must meet each of the 5 criteria's for a variance, not 4 or 3, all 5 practical difficulties.

For Practical Difficulty: Mr. Veenstra says his house has been flooding for 27 years. Michigan has a law that protects residents against this type of action, it is called the Drain Law of Michigan. Why hasn't he taken this up with the County? If he has where is the documentation?

Mr. Veenstra claims to have had water damage, where is the documentation?

How is a wood framed wall going to keep water out? How is a wood framed wall with one side open going to keep water out?

Unique Situation: I see nothing unique about this situation.

Substantial Justice: Mr. Veenstra admits he simply attached a knee wall/half wall to the front of his house which already had a roof and cement floor. He states he did not close it in on the ends. This is adding/altering a nonconforming structure which violates our Zoning Ordinance.

Not Self-Created: Mr. Veenstra stated this was an issue when he purchased the property 27 years ago. To me this means this was self-created as it was an issue when he purchased the property.